

[*468] mortgagee * is not bound to see to the application of the money, and it would seem that the executor is thus empowered to pass the *legal* as well as the *equitable* estate, for the clause proceeds that "any sale or mortgage under the Act shall operate only on the estate and interest, whether *legal* or *equitable*, of the testator, and shall not render it unnecessary to get in any *outstanding* subsisting legal estate." It must not escape notice that the power of sale is confined to the *executor*, the person whom the testator himself trusted, and is not extended to an *administrator* (a).

δ. **Charge of debts where the estate lapses.**—Should a testator charge his debts on the real estate, and then devise the estate to A. and his heirs beneficially, and the *devisee dies in the testator's lifetime*, so that the estate descends, can the heir in this case sell and sign receipt? If the heir cannot sell where the estate was never devised, but left to descend, *à fortiori* he cannot in this case, for here not only the heir is not invested with the character of trustee under the will, but the estate, subject to the charge, was devised to another person, who was therefore intended to execute the implied trust. The machinery contemplated by the testator failed by the act of God, and no alternative remains but that the trusts should be executed by the Court (b). It is presumed that under these circumstances it could not be held that the executors have by the will even an *equitable* power of sale. The devisee, had he lived, would have been the proper person to execute the trust, and a power of sale cannot belong

or executor for the time being may exercise the powers of this section, notwithstanding the will contains an express direction that the property shall be sold by the executors, *Re Fisher and Haslett*, 13 L. R. Ir. 646.]

[(a) *Re Clay and Tetley*, 16 Ch. D. 3.]

(b) But see *Hardwick v. Mynd*, 1 Anst. 109; *Austin v. Martin*, 29 Beav. 523. The latter case may possibly be supported on the ground that the mortgagee, who had a power of sale

and of signing receipts, was a party to the conveyance; but the reasoning of M. R., if correctly reported, is not satisfactory. How can it be said, for instance, that "the whole of the beneficial interest was vested in T. F. Stephens either in his character of heir-at-law or in his character of *legal personal representative*?" What beneficial interest in a testator's *freehold* estate can vest in his *personal representative*?